

brought to protect senior citizens. In *Clark v. Superior Court* (2010) 50 Cal.4th 605 the California Supreme Court held that trebling under Civil Code section 3345 is not permitted in a private action for unfair competition under section 17200 since restitution is the only monetary remedy available. (*Id.* at 608, 614.)

Plaintiff acknowledges the ruling in *Clark*, but argues that here she is seeking Civil Code section 3345 damages for the entire complaint. Yet, Defendant's motion addresses the allegation for treble damages included in the claim for unfair competition.

The Court finds that treble damages are not permitted in an unfair competition claim under *Clark*, and therefore the Court grants Defendant's request to strike them. Whether Plaintiff has some other avenue for obtaining treble damages is not before the Court at this time.

As to the second issue, Defendant argues that John Muir Center in Concord is an acute care general hospital and that the allegations regarding portions of the California Code of Regulations in paragraphs 46 and 47 relate to skilled nursing facilities, which are irrelevant here.

Defendant has included requests for judicial notice showing that John Muir Center in Concord is licensed by the State of California as a general acute care hospital. Defendant's requests for judicial notice are granted.

Plaintiff admits in her opposition that Defendant is an acute care hospital and states she can amend to state the applicable regulations against hospitals like Defendant. Plaintiff also argues that the California Code of Regulations provisions for skilled nursing facilities are necessary to the evidence against Defendant, but has not explain why those regulations are relevant here.

The Court finds that regulations regarding skilled nursing facilities in paragraphs 46 and 47 are irrelevant here where the defendant is an acute care hospital. The Court grants the motion to strike with leave to amend.

**9. 9:00 AM CASE NUMBER: C24-03339
CASE NAME: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC VS. DE LUNA DESIGN AND BUILD LLC**

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY
FILED BY: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC**

TENTATIVE RULING:

Plaintiff moves to compel further answers to Special Interrogatories, Form Interrogatories, and a Request for Production of Documents. It further seeks sanctions in the form of a \$1,400 attorney fee. The moving papers document that the requests were propounded, responses were served, and plaintiff attempted to meet and confer about the adequacy of the responses, unsuccessfully. As to the specific requests at issue: As to the special interrogatories, for each disputed response (16, 18, 19, 20, 21, 22, and 32), the response asserts that a list of information will be provided, but it has not been provided. As to Form Interrogatory 9.2, again documents are promised, but have not been provided.

As to the Request for Production of Documents 51 requests were made, and responses were promised to all but six requests, yet defendant produced no documents. Defendant is ordered to produce documents as promised in the initial responses, within 20 days after notice of entry of this order.

Defendant filed a late response indicating that “it owes document discovery to Plaintiff,” but that it is going out of business and hopes to settle the case with a two-week continuance. Plaintiff replies that, while the case may yet be settled, it opposes a continuance. In the absence of agreement by the parties, the Court will deny the continuance

As to the request for sanctions, Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

Code of Civil Procedure sections 2031.300(c) (production of documents) and 2030.290(c) (interrogatories) require sanctions, under specified circumstances, against a party “who unsuccessfully makes or opposes a motion to compel[.]” Under Code of Civil Procedure section 2023.030(a), however, the court has separate authority to impose a monetary sanction against a party engaging “in the misuse of the discovery process,” which is defined to include “making, without substantial justification, an unmeritorious objection to discovery[.]” (CCP § 2023.010(e).) That section does not require opposition to a motion to compel.

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by not opposing the motion or supplementing the discovery responses.

10. 9:00 AM CASE NUMBER: C25-01089
CASE NAME: CONSUELO CAMPOS VS. CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
TENTATIVE RULING:

The demurrer, filed by defendant Contra Costa Community College District, is **overruled**. District shall file and serve its answer on or before December 22, 2025.

I. Factual Background

The complaint here involves plaintiff’s attendance at graduation ceremonies at the Diablo Valley College campus on May 17, 2024. (Complaint, ¶8.) Plaintiff alleges that she was walking along the fence on way to find seating in the bleachers when she tripped over an exposed cable that lacked any cable cover, with no other warning or demarcation. (*Ibid.*) Plaintiff suffered injuries to her chin,